SUMMARY: EPA is today approving a request dated September 23, 1981, from the Washington Department of Ecology for subdelegation to enforce the New Source Performance Standards to the Benton-Franklin-Walla Walls Counties Air Pollution Control Authority.

EFFECTIVE DATE: November 9, 1981.

ADDRESSES: The related material in support of this subdelegation may be examined during normal business hours at the following locations:

Central Docket Section (10A–81–4), West Tower Lobby, Gallery I, Environmental Protection Agency, 401 M Street SW., Washington, D.C. 20460

Air Programs Branch, Environmental Protection Agency, Region 10, 1200 Sixth Avenue, Seattle, Washington 98101

State of Washington, Department of Ecology, 4224 Sixth Avenue, SE., Lacey, Washington 98503

The Office of the Federal Register, 1100 L Street, NW., Room 8401, Washington, D.C.

FOR FURTHER INFORMATION CONTACT: George C. Hofer, Air Programs Branch, Environmental Protection Agency, 1200 Sixth Avenue, M/S 625, Seattle, Washington 98101, Telephone: (206) 442–1352, 399–1352 (FTS).

SUPPLEMENTARY INFORMATION: Pursuant to section 112(d) of the Clean Air Act, as amended, the Regional Administrator of Region 10, Environmental Protection Agency (EPA), delegated to the State of Washington Department of Ecology on February 28, 1975, the authority to implement and enforce the program for New Source Performance Standards (NSPS). The delegation was announced in the **Federal Register** on April 1, 1975 (40 FR 14632).

On September 23, 1981, the Washington State Department of Ecology requested EPA's concurrence in the State's subdelegation of the NSPS program to the Benton-Franklin-Walla Walla Counties Air Pollution Control Authority. After reviewing the State's request, the Regional Administrator determined that the subdelegation met all the requirements outlined in EPA's delegation of February 28, 1975. Therefore, the Regional Administrator on November 9, 1981, concurred in the subdelegation to the local agency listed below with the stipulation that all the conditions placed on the original delegation to the State shall also apply to the subdelegation to the local agency (except fossil fuel-fired steam generators). EPA is today amending 40 CFR 60.04 to reflect the State's subdelegation.

The amended § 60.04 provides that all reports, requests, applications, submittals and communications required pursuant to Part 61 which were previously to be sent to the Director of the Washington Department of Ecology will now be sent to the Benton-Franklin-Walla Walla Counties Air Pollution Control Authority. The amended section is set forth below.

This rulemaking is effective immediately and is issued under the authority of section 112 of the Clean Air Act, as amended (42 U.S.C. 1857c–7).

Dated: November 20, 1981.

John R. Spencer,

Regional Administrator.

PART 60—STANDARDS OF PERFORMANCE FOR NEW STATIONARY SOURCES

Part 60 of Chapter I, Title 40 of the Code of Federal Regulations is amended as follows:

In § 60.4, paragraph (b) is amended by adding paragraph (WW)(viii):

§ 60.4 Address.

* * * * *

(b) * * *

(WW) * * *

(viii) Benton-Franklin-Walla Walla Counties Air Pollution Control Authority, 650 George Washington Way, Richland, Washington 99352.

* * * * *

Incorporation by reference of the State Implementation Plan for the State of Washington was approved by the Director of the Office of Federal Register on July 1, 1981.

[FR Doc. 81-36315 Filed 12-23-81; 8:45 am]

BILLING CODE 6560-38-M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 6095

[NM 42945]

New Mexico; Revocation of Public Water Reserve No. 107, Interpretation No. 109

AGENCY: Bureau of Land Management, Interior.

ACTION: Public land order.

SUMMARY: This order revokes an Executive order and a Secretarial order which withdrew lands for a public water reserve. This action will restore the lands to operation of the public land laws generally, including nonmetalliferous mineral location under the mining laws.

EFFECTIVE DATE: January 19, 1982.

FOR FURTHER INFORMATION CONTACT: Stella V. Gonzales, New Mexico State Office 505–988–6211.

By virtue of the authority vested in the Secretary of the Interior by section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. The Executive Order of April 17, 1926, creating Public Water Reserve No. 107, as construed by Secretarial Order of November 1, 1929, is hereby revoked in its entirety:

New Mexico Principal Meridian

T. 28 S., R. 9 W.,
Sec. 15, S½NE¼, N½SE¼.

The area described contains 160 acres in Luna County.

2. At 8 a.m. on January 19, 1982, the lands will be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 8 a.m. on January 19, 1982, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. At 8 a.m. on January 19, 1982, the lands will be open to nonmetalliferous mineral location under the United States mining laws. The lands have been and continue to be open to metalliferous mineral location under the United States mining laws and to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Bureau of Land Management, P.O. Box 1449, Santa Fe, New Mexico 87501.

Garrey E. Carruthers,

Assistant Secretary of the Interior.

December 14, 1981.

[FR Doc. 81-36715 Filed 12-23-81; 8:45 am]

BILLING CODE 4310-84-M

43 CFR Public Land Order 6096

[M 41590]

Montana; Public Land Order No. 5924; Correction

AGENCY: Bureau of Land Management, Interior.

ACTION: Public land order.

SUMMARY: This document will correct two errors in Public Land Order No. 5924 of May 18, 1981 which concerned partial revocation of a public water reserve in Montana.

EFFECTIVE DATE: December 24, 1981.

FOR FURTHER INFORMATION CONTACT: Roland F. Lee, Montana State Office, 406–657–6291.